

The National Institute Of Disaster Management Regulations, 2006

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The National Institute Of Disaster Management Regulations, 2006

UNION OF INDIA

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The National Institute Of Disaster Management Regulations, 2006

Rule THE-NATIONAL-INSTITUTE-OF-DISASTER-MANAGEMENT-REGULATIONS-2006 of 2006

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The National Institute Of Disaster Management Regulations, 2006

Published vide Notification G.S.R. 681(E), dated 31.10.2006 and published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 31.10.2006

7.

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G.S.R. 681(E), dated 30.10.2006 - In exercise of the powers conferred by sub-section (7) of section 42 read with section 76 of the Disaster Management Act, 2005 (

53 of 2005

), the Central Government hereby makes the following regulations, namely:-

1.

Short title and commencement - (1) These regulations may be called The National Institute of Disaster Management

Regulations, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions - (1) In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Disaster Management Act, 2005 (53 of 2005

);

(b)

"Chairperson" means the Chairperson of the governing body;

(c)

"Executive Director" means the Executive Director of the institute appointed by the Central Government;

(d)

"governing body" means the governing body of the institute;

(e)

"institute" means the National Institute of Disaster Management;

(f)

"President" means the President of the institute;

(g)

"Secretary" means the Secretary of the institute, or as the case may be, the governing body;

3.

Composition of the institute and the governing body - The institute and the governing body shall consist of such members as are provided under sub-rule (1) of rule 3 and sub-rule (1) of rule 6 respectively of the Disaster Management (National Institute of Disaster Management) Rules, 2006.

4.

Meetings of the institute - (1) The President, or in his absence, the Vice-President, shall preside over the meetings of the institute.

(2)

The institute shall meet at such times and places as may be considered necessary by the President for the transaction of the business of the institute:

Provided that the institute shall meet at least once in every year.

(3)

(a)

The Secretary shall give a notice specifying the place, date and time of an ordinary meeting of the institute at least twenty-one days prior to the date of such meeting.

(b)

The agenda shall also be sent alongwith the notice of the meeting and where it is not possible, the agenda shall be sent at least seven days before the meeting.

(4)

The President may call an extraordinary meeting of the institute at any time for the transaction of urgent business of the institute.

(5)

The Secretary shall give a notice to all the members specifying the place, date and time of the meeting for an extraordinary meeting at least seven days before the date of the meeting alongwith the agenda.

(6)

(a)

The institute shall call an extraordinary meeting within thirty days of a written request of not less than twelve members of the institute.

(b)

The members of the institute shall indicate the purpose of the request for the meeting referred to in clause (a).

(7)

The quorum for a meeting of the institute shall be ten.

(8)

The President may include in the agenda at any time before or during a meeting of the institute-

(i)

any fresh item or items of business; or

(ii)

any item supplementary to those included in the agenda, and such item shall be taken up for consideration.

(9)

A notice may be served upon any member of the institute either personally, by e-mail, fax, telegram or by post under certificate of posting in an envelope addressed to such member and such notice shall be presumed to have been properly delivered.

(10)

No subject disposed of by the institute at a meeting shall be brought up again for consideration until after the expiry of one year except in a case where the President or the Central Government certifies that the subject requires further consideration in the interest of the institute.

(11)

A decision given by the President of the meeting on a point of order raised by a member of the institute shall be final.

(12)

All matters submitted to a meeting of the institute shall be decided by a majority of the members of the institute present and voting thereat, and in case of an equality of votes, the President or the person presiding shall have a casting vote, in addition to the vote to which he may be entitled as a member of the institute.

5.

Transaction of business by circulation of papers - (1) Any business of the institute which may be necessary for the institute to transact may, if the President so directs, be dealt with by circulation of agenda papers alongwith a draft resolution incorporating the decision required among all the members of the institute at their usual address and any draft resolution so circulated and approved by the majority of the members of the institute signing shall be as effectual and binding as if the resolution had been passed at a meeting of the institute provided that at least twelve members of the institute have recorded their views on the resolution.

(2)

A member shall give reply within twenty-one days from the date of issue of the notice of such business and if no reply is received from a member of the institute within the said period, he shall be deemed to have supported the draft resolution.

(3)

If a draft resolution is circulated, the result of the circulation shall be communicated to all members of the institute and the resolution shall also be placed before the next meeting of the institute for confirmation.

6.

Recording of business - (1) A record shall be maintained of all business transacted by the institute.

(2)

All decisions of the institute shall, as far as possible, be recorded in the form of resolutions and an entry of such decision in the book of proceedings of the institute shall be conclusive evidence of the fact that such decisions were taken by the institute.

(3)

The proceedings of every meeting of the institute shall be circulated among its members within thirty days of the meeting and if any comments are received within a stipulated time they shall be incorporated suitably subject to the approval of the President and re-issued as final proceedings.

7. Delegation of functions to governing body or Executive Director - The institute may, by general or special order in writing, delegate to the governing body or the Executive Director, subject to such conditions and limitations, if any, as may be specified in the order, such of its functions which it considers conducive or incidental to the attainment of the objects specified under sub-section (9) of section 42.

8.

Term of office - (1) The term of office of a member of the governing body shall continue as long as he is a member of the institute.

(2)

The term of office of a nominated member of the governing body under clauses (vii), (viii), (ix) or (x) of sub-rule (1) of rule 6 of the Disaster Management (National Institute of Disaster Management) Rules, 2006 shall cease as soon as he ceases to be member of the institute or till he is replaced by the Central Government, whichever is earlier.

9.

Powers and functions of the governing body - (1) The governing body shall be responsible for carrying out the decisions of the institute.

(2)

In particular and without prejudice to the generality of the foregoing functions, the governing body may perform all or any of the following functions, namely:-

(a)

ensure compliance of broad policies and guidelines laid down for the institute by the National Authority;

(b)

consider and recommend such proposals as are required to be submitted to the institute for its approval;

(c)

consider and approve such programmes and activities as may be taken up as interim till these are approved by the institute;

(d)

consider and approve such changes in the approved annual activities of the institute as may be considered necessary, subject to ex post facto approval of such changes by the institute;

(e)

consider and approve such new activities not included in the approved annual activities of the institute as may be required to be taken up, subject to ex post facto approval by the institute;

(f)

appoint such Committees and Sub-Committees as considered appropriate for the discharge of its functions;

(g)

perform all such acts and do all such things as may be necessary for the proper management of the properties of the institute; and

(h)

perform all such functions as may be delegated by the institute.

10.

Time and place of meeting of the governing body - The governing body shall hold its meetings at such place and time as the Chairperson of the governing body may, from time to time, determine:

Provided that the Chairperson of the governing body shall convene a meeting if a requisition for that purpose is presented to him in writing by not less than four members of the governing body specifying the subject-matter proposed to be discussed in the meeting:

Provided further that the governing body shall meet at least once in three months.

11.

Notice for meeting of governing body - (1) Not less than fourteen days notice for every meeting of the governing body shall be given to each member of the governing body.

(2)

A notice may be served upon any member of the governing body either personally, by e-mail, fax, telegram or by post under certificate of posting in an envelope addressed to such member and such notice shall be presumed to have been properly delivered.

(3)

Notwithstanding anything contained in sub-regulation (1), a meeting of the governing body at which any matter which is considered urgent by the Chairperson has to be taken up, may be called at a shorter notice.

12.

Quorum - (1) No business shall be transacted at a meeting of the governing body unless at least five members of the

governing body are present.

[Provided that the members of the Governing body referred to in clauses (iv), (vii), (viii), (ix), (x) and (xi) of sub-rule (1) of rule 6 of the Disaster Management (National Institute of Disaster Management) Rules, 2006 may nominate officers not below the rank of a Joint Secretary to the Government of India or a Professor of the Institute or an equivalent officer, as the case may be, to attend the meetings of the Governing body in case they are not able to attend the meetings and such nominee shall be considered for deciding the quorum.]

(2)

If within half an hour of the time appointed for holding the meeting of the governing body, quorum is not present, the meeting shall stand adjourned to another day and notice of such adjourned meeting shall be given to each member of the governing body by e-mail, fax, telegram, post or special messenger, as the case may require:

Provided that a meeting so adjourned shall be held within twenty-one days of the date on which it was originally proposed to be held.

(3)

If at any such adjourned meeting also, the quorum is not present within half an hour from the time appointed for holding the meeting, the members of the governing body present at the meeting shall form the quorum.

13.

Presiding over the meetings of governing body - (1) The Chairperson of the governing body shall preside over every meeting of the governing body.

(2)

If the Chairperson of the governing body is not present at any particular meeting, the Vice-Chairperson shall preside over the meeting of the governing body.

(3)

If the Chairperson and the Vice-Chairperson of the governing body are not present at any particular meeting, the members of the governing body present shall choose one from among themselves to chair that meeting.

14.

Transaction of business by circulation of papers - (1) Any business which may be necessary for the governing body to transact, may, if the Chairperson or in his absence, the Vice-Chairperson so directs, be dealt with by circulation of the papers to all the members of the governing body at their usual addresses, and any resolution so circulated shall be as effectual and binding as if the resolution has been passed at a meeting of the governing body, provided at least five members of the governing body have accorded their approval to the resolution.

(2)

If a resolution is circulated, the results of circulation shall be communicated to all the members of the governing body and shall also be placed before the governing body at its subsequent meeting for confirmation.

15.

Voting - All matters submitted to a meeting of the governing body shall be decided by a majority of the members of the governing body present and voting thereat, and in case of an equality of votes, the Chairperson of the governing body or the person presiding shall have a casting vote, in addition to the vote to which he may be entitled to as a member of the governing body.

16.

Recording of business - (1) A record shall be maintained of all business transacted by the governing body.

(2)

All decisions of the governing body shall, as far as possible, be recorded in the form of resolutions and an entry of such decisions in the book of proceedings of the governing body shall be conclusive evidence of the fact that such decisions were taken by the governing body.

(3)

The proceedings of every meeting shall be circulated to the members of the governing body within twenty-one days of the meeting of the governing body.

17.

Allowances to the members of the institute and the governing body - (1) The members of the institute and the governing body may be paid travelling allowances, daily allowances, conveyance allowances and room rent as admissible under the Supplementary Rules.

18.

Powers and functions of Executive Director - (1) The Executive Director shall be responsible for implementation of the decisions of the institute, its governing body and the broad policies and guidelines of the National Disaster Management Authority and perform such other functions as may be assigned by the Central Government.

(2)

The Executive Director shall be in charge of the administration of the institute and shall allocate duties to officers and employees provided to the institute and exercise such supervision and executive control as are necessary.

(3)

The Executive Director shall exercise the powers of the Head of the Department as specified in the Fundamental Rules, Supplementary Rules and the Delegation of Financial Power Rules.

(4)

The Executive Director shall-

(a)

discharge the functions of disciplinary authority in respect of the officers and employees of the institute below the rank of Associate Professor and equivalent posts.

(b)

decide the venue of the trainings and workshops and invite resource persons for various programmes subject to such guidelines as may be laid down by the institute or its governing body;

(c)

engage consultants for performance of specific jobs subject to such guidelines as may be laid down by the institute or its governing body;

(d)

make such short term changes in the training programmes, workshops and other activities of the institute as may be necessary due to exigencies of situation;

(e)

approve publication of documents, reports, etc.;

(f)

permit air travel to non-entitled officers for reasons to be recorded in writing;

(g)

correspond with the Central Government and State Governments on any matter pertaining to the institute;

(h)

discharge such other functions as may be delegated to him by the institute or its governing body.

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